

October 14, 2016

GB

Mr. Gary Bogue
Wetlands Division
DEP – Northeast Regional Office
205B Lowell Street
Wilmington, MA 01887

RE: Final Order of Resource Area Delineation (DEP File #338-0594)
42 Mill Street, Westwood, MA

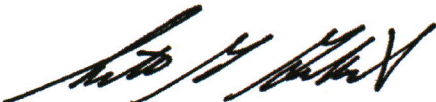
Goddard Consulting, LLC is pleased to submit two (2) copies of the attached plans for the above referenced site on behalf of Anthony Delepa, of Delapa Properties for a Final Order of Resource Area Delineation.

The titles of all the documents enclosed are as follows:

- Wetland Delineation Plan, GLM Engineering Consultants, Inc., Revised 10/3/16

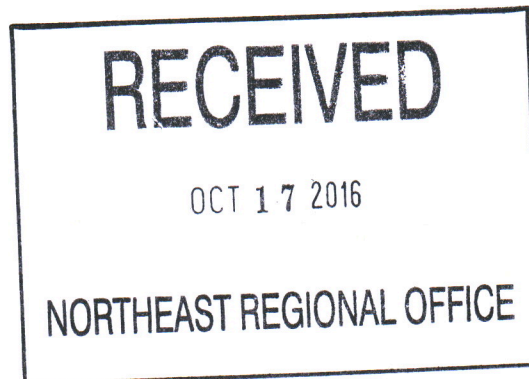
If there are any questions concerning this submission, please do not hesitate to contact us.

Very truly yours,
Goddard Consulting, LLC

by 

Scott G Goddard, PWS
Owner & Professional Wetland Scientist (PWS)

cc: Westwood Conservation Commission, 50 Carby Street, Westwood, MA 02090
Anthony Delapa, Delapa Properties, 511 Washington Street, Norwood, MA 02062 (*applicant*)
Matthew Watsky, 30 Eastbrook Road, Suite 301, Dedham, MA 02026 (*attorney for applicant*)



Mill Pond/Bedford**“Primarily Riverine” Analysis per 10.58(2)(a)1.e.**

1. *Is the waterbody part of the 23 rivers named within 10.58(2)(a)1.b? If yes, then it is a river, not a pond. If no, go to 3.* Mill Pond is an impoundment of Vine Brook, which is not one of the 23 named rivers.
2. *Is the waterbody listed as a Great Pond? If yes, then it is a pond, not a river. If no, go to 3.* Mill Pond is not a Great Pond.
3. *Primarily Riverine Checklist:*

	<i>Pond</i>	<i>River</i>	<i>Notes</i>
Impoundment Shape (1)	X		Mill Pond is a polygon
Control Structure (2)		X	
Bathymetry (3)		X	contours indicate channel; no deep hole
Tributaries (4)		X	1 perennial; 1 intermittent
Length-to-Width Ratio (5)		X	
Watershed: Impoundment Area Ratio(6)		2216:1	
Residence Time(7)		0.5-1.5 days (from ConCom consultant)	
Vertical Stratification(8)			No information has been given or researched regarding this
Other (e.g. vegetation)			
Presence of fish species is indeterminate since fish are mobile & are not good indicators.			
Mill Pond has no littoral zone (no shallow sloping transition) which is more indicative of a pond situation			
Conclusion: “Mill Pond” displays predominantly riverine characteristics			

(1) *A long linear shape is riverine; a round shape is pond-like.*

(2) *The presence of a control structure, particularly if installed for industrial purposes (“run-of-river” impoundment), is a riverine indicator.*

(3) *The presence of a channel is a riverine indicator.*

(4) *The more tributaries a pond has, the more likely it may be riverine.*

(5) *A length-to-width ratio of $\geq 5:1$ is a riverine characteristic.*

(6) *A watershed size to impoundment size of $\geq 50:1$ is a riverine characteristic.*

(7) *A theoretical residence time of 15 days or less is a riverine characteristic.*

(8) *A vertical temperature stratification of 5 degrees F or greater (between surface and bottom) for at least 3 consecutive days is a pond characteristic.*

RECEIPT
Printed: December 23, 2019 @ 10:17:1
Norfolk Registry of Deeds
William P. O'Donnell
Register

Massachusetts
Department of Environmental Affairs

Department of Environmental Protection

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Trans#: 225649 Oper: LEAH

Book: 37467 Page: 20 Inst#: 121724
Ct1#: 324 Rec: 12-23-2019 @ 10:17:03a
WSTD 42 MILL STREET

Kathleen A. Theoharides
Secretary

Martin Suuberg
Commissioner

DOC	DESCRIPTION	TRANS AMT
ORDER		
10.00	rec fee	11.00
20.00	Surcharge	20.00
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	STATE PG ADJ	1.00
	Postage/Handling Fee	1.00
	State Fee \$40.00	40.00
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2019, I, Rachel Freed, Deputy Regional Director for the
Division, Bureau of Water Resources, Northeast Regional Office,
attest that the attached copy of the Final Order of Resource

Area Delineation for DEIR #0306-0594 which was originally signed by Martin Suuberg,
Commissioner, MassDEP on December 19, 2016, and issued on the same date, is a True Copy of
said Final Order of Resource Area Delineation for the above-referenced Final Order of Resource
Area Delineation that resides in this file.

Signed Under the Pains and Penalties of Perjury:

Rachel Freed
Rachel Freed

December 17, 2019
Date

On this 17th day of December, 2019, before me personally appeared Rachel Freed for the
Department of Environmental Protection, to me known to be the person described in and who
executed the foregoing instrument and acknowledged that she executed the same as her free act and
deed.

Elizabeth Sabounjian
Notary Public: Elizabeth Sabounjian



My commission expires: December 23, 2023

My commission expires